

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

WIDLER DORSAINVIL.

Plaintiff,

-against-

Index No.:

Plaintiff(s)
designate **KINGS**
County as the
place of trial.

The basis of the venue is PLAINTIFF'S residence.

JASON BOLGER, EDDIE VEGA, "JOHN"
HEREDIA and CITY OF NEW YORK,

Defendants.

SUMMONS

Plaintiff's address:
396 Montgomery Street
Brooklyn, New York

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of Service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
January 6, 2017

James Greenberg, P.C.

BY: JAMES K. GREENBERG
Attorney(s) for Plaintiff(s)
233 Broadway, Suite 900
New York, New York 10279
917-262-0745 direct dial

Defendants Address:

JASON BOLGER
1 Police Plaza
New York, NY 10038

EDDIE VEGA
1 Police Plaza
New York, NY 10038

"JOHN" HEREDIA
1 Police Plaza
New York, NY 10038

CITY OF NEW YORK
New York City Corporation Counsel's Office
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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WIDLER DORSAINVIL,

Index No.:

**VERIFIED
COMPLAINT**

Plaintiff,

-against-

JASON BOLGER, EDDIE VEGA,
"JOHN" HEREDIA and CITY OF
NEW YORK,

Defendants.

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Plaintiff, by his attorneys, **JAMES GREENBERG, P.C.**, complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

1. At all times hereinafter mentioned, the plaintiff was an individual who resided and still resides in the County of Kings, City and State of New York, maintaining a residence address of 396 Montgomery Street, Brooklyn, New York.

2. At all times hereinafter mentioned, Defendant JASON BOLGER was a police officer employed by the New York City Police Department, maintaining a business address of 1 Police Plaza, in the City, County and State of New York.

3. At all times hereinafter mentioned, Defendant EDDIE VEGA was a police officer employed by the New York City Police Department, maintaining a business address of 1 Police Plaza, in the City, County and State of New York.

4. At all times hereinafter mentioned, Defendant JASON BOLGER was a police officer employed by the New York City Police Department, maintaining a business address of 1 Police Plaza, in the City, County and State of New York.

5. At all times hereinafter mentioned, defendant CITY OF NEW YORK (hereinafter referred to as "defendant City") was an still a municipal corporation duly formed and existing under and by virtue of the laws of the State of New York, maintaining a principal place of business at 1 Police Plaza, New York, New York.

6. This law suit is being commenced within the statutory period of one year and ninety days from the accrual of said cause of action against Defendants.

7. Upon information and belief, at all times hereinafter mentioned, the New York City Police Department employed all of the individually-named defendants police

officers, whose acts complained of herein were performed in behalf of the New York City Police Department and under color of law.

8. On or about January 7, 2016, between 12:00pm and 1:00pm defendant BOLGER alleged (according to his supporting deposition in criminal proceedings commenced against the plaintiff) to have observed the plaintiff walking between cars while he was riding a subway.

9. Shortly after the alleged observation made by Defendant BOLGER, Defendants BOLGER, VEGA and HEREDIA arrested the plaintiff for the act of walking between subway cars.

10. During the arrest of the plaintiff, each of the individually named defendants struck, beat, brutalized, maimed and injured the plaintiff in view of other passengers and Transit Authority personnel for no apparent reason whatsoever.

11. The plaintiff was charged with several offenses after he was taken to Methodist Hospital by the involved officers for treatment for the injuries they wrongfully inflicted upon him.

FIRST CAUSE OF ACTION FOR EXCESSIVE FORCE

12. The plaintiff repeats, re-alleges and reiterates the allegations set forth in paragraphs 1 through 11 as if set forth fully herein.

13. The actions of the arresting officers in striking, beating, brutalizing, maiming and injuring the plaintiff during the arrest constituted force far greater than what was required to effect the arrest.

14. As a result of the excessive force used upon the plaintiff, he was injured both physically and mentally, was and will be required to endure medical and psychological care as a result thereof, and was otherwise injured and damaged.

15. As a result of the foregoing, plaintiff WIDLER DORSAINVIL was damaged in sum that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action.

AS AND FOR A SECOND CAUSE OF ACTION FOR STATUTORY AND CONSTITUTIONAL VIOLATIONS

16. The plaintiff repeats, re-alleges and reiterates the allegations set forth in paragraphs 1 through 1 through 11 as if set forth fully herein.

17. The aforementioned acts perpetrated by the defendants constituted violations of the plaintiff's constitutional rights under 42 U.S.C. 1983 and thus entitle him to compensation for his damages.

18. As a result of the foregoing, plaintiff WIDLER DORSAINVIL was damaged in sum that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR ASSAULT**

19. The plaintiff repeats, re-alleges and reiterates the allegations set forth in paragraphs 1 through 11 as if set forth fully herein.

20. The aforementioned acts perpetrated by the defendants constituted unwanted touchings and/or assault.

21. As a result of the foregoing, plaintiff WIDLER DORSAINVIL is also entitled to punitive damages.

WHEREFORE, Plaintiff WIDLER DORSAINVIL respectfully requests judgment against the Defendants as follows:

A. On the First Cause of Action, compensatory damages against the defendants, and each of them, in an amount that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action;

B. On the Second Cause of Action, compensatory damages against the defendants, and each of them, in an amount that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action;

C. On the Third Cause of Action, compensatory damages against the defendants in an amount that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action; punitive damages against each of the individually named defendants in amount to be determined by the Court and jury at the trial of this action.

together with the costs and disbursements of this action and interest on the verdict rendered hereon.

Dated: January 6, 2017
New York, NY

Respectfully submitted,

JAMES GREENBERG, P.C.

A handwritten signature in black ink, appearing to be 'JKG', written over a horizontal line.

By: JAMES K. GREENBERG

Attorneys for Plaintiff

WIDLER DORSAINVIL

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New York, New York 10279

(917)262-0745 direct dial

(917)591-4999 fax

Email: jim@jamesgreenberglaw.com

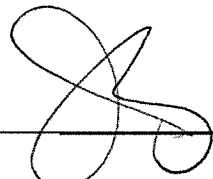
STATE OF NEW YORK)
 ss.:)
COUNTY OF NEW YORK)

I, JAMES K.GREENBERG, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state that I am a member of the firm of *James Greenberg, P.C.* attorneys for *plaintiff*.

I have read the foregoing *Complaint* and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by *plaintiff* is because the *plaintiff* is not presently within the County wherein I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are as follows:
Information obtained from *plaintiff* and information contained in *plaintiff's* file.

I affirm that the foregoing statements are true, under penalty of perjury.

Dated: New York, New York
January 6, 2017



JAMES K. GREENBERG